

**SUBSTITUTE FOR
HOUSE BILL NO. 6105**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending section 2150 (MCL 324.2150), as amended by 2022 PA 1.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2150. (1) Except as otherwise provided in subsection (2),
2 on December 1 of each year the department of treasury shall pay
3 into the treasury of each county in which are located tax reverted,
4 recreation, forest, or other lands under the control and
5 supervision of the department a tax ~~in the following amount:~~

6 ~~(a) Before December 1, 1994, \$2.50 per acre or major portion~~
7 ~~of an acre.~~

8 ~~(b) After November 30, 1994 and before January 1, 2014, \$2.00~~
9 ~~per acre or major portion of an acre.~~



~~(c) After December 31, 2013 and before January 1, 2015, \$3.00 per acre or major portion of an acre.~~

~~(d) After December 31, 2014, \$4.00~~ **equal to \$5.26** per acre or major portion of an acre, adjusted annually by 5% or the inflation rate, whichever is less, which ~~shall~~ **must** be distributed as provided in subsection (5). As used in this ~~subdivision,~~ **subsection,** "inflation rate" means that term as defined in section 34d of the general property tax act, 1893 PA 206, MCL 211.34d.

(2) The tax levied under subsection (1) does not apply to the following:

(a) Lands purchased after January 1, 1933 for natural resource purposes.

(b) State lands on which payments in lieu of taxes are made ~~pursuant to~~ **under** subpart 14.

(3) The tax levied under this section is in lieu of all other taxes ~~and special assessments~~ **now** levied against the state lands under any existing law.

(4) The department of treasury shall make a detailed statement of account between this state and each county in which lands subject to the tax levied under this section are located. The **detailed** statement ~~shall~~ **of account must** include a description of the lands. The department of treasury shall submit the detailed statement of account to the county treasurer of the county. The department of treasury shall cause a warrant to be drawn payable to the county for the amount indicated on the detailed statement of account.

(5) The county treasurer of each county shall immediately make a detailed statement of account between the county and each township ~~and school district~~ in the county, distributing the amount



received by the county proportionally based on the number of acres of the lands located in each township. ~~and school district. For disbursements made before December 1, 1994, the distribution shall be 40% to the county general fund, 40% to the township general fund, and 20% to the school operating fund.~~ For disbursements made after November 30, 1994, ~~and before December 1, 2022,~~ the distribution shall be 50% to the county general fund and 50% to the township general fund. ~~For a disbursement made on or after December 1, 2022, distributions to county boards for special assessments for lake level controls that were levied under part 307 against land described in subsection (1) but that have not been paid under this section shall receive priority. For the remaining amount of the disbursement, the distribution shall be 50% to the county general fund and 50% to the township general fund.~~ The county treasurer shall immediately issue a warrant to each of the units consistent with the detailed statement of account.

(6) The tax on tax reverted, recreation, forest, or other lands under the control of the department on which payments are made under this subpart shall be paid from the general fund. This state shall make payment in full for the amount indicated in the statement of account prepared under subsection (4).

(7) The tax levied under this section is not in lieu of special assessments for inland lake levels under part 307, regardless of whether the special assessment was levied before, on, or after the effective date of the amendatory act that added this subsection.

